

APPENDIX D

EARTH EXCAVATION REGULATIONS*

CLAREMONT PLANNING BOARD EARTH EXCAVATION REGULATIONS

Article I. Authority.

In accordance with the provisions of New Hampshire Revised Statutes Annotated, Chapter 155-E, and the City of Claremont Ordinance Number 270, the planning board adopts the following regulations in the City of Claremont, New Hampshire.

Article II. Purpose.

The purpose of these regulations is to cope with the recognized safety hazards which open excavations create; to safeguard the public health and welfare; to preserve our natural assets of soil, water, forests and wildlife; to maintain aesthetic features of our life; to prevent land and water pollution; to promote soil stabilization; and to protect the municipal interests.

Article III. Definitions.

3.1 *Applicant* - The owner of the excavation site or person designated by the owner in writing at the time of application.

3.2 *Application* - A complete submission of information and plans as required by statute RSA 155-E, local regulations and in the excavation permit application.

3.3 *Aquifer* - A water bearing stratum of permeable rock, sand, or gravel. These areas appear on statewide mapping prepared by the United States Geological Survey entitled, "Availability of Ground Water."

***Editor's note**—Printed herein are the earth excavation regulations adopted by the planning board on November 10, 1986.

Cross references—Streets, sidewalks and other public places, Ch. 16; excavations in streets and highways of the city, § 16-41 et seq.; subdivisions, Ch. 17; extraction of soil, sand or gravel, § 22-507.

3.4 *Excavation* - Means a land area which is used or has been used for the commercial taking of earth, including all slopes.

3.5 *Excavation pit agreement* - An agreement between the excavation site owner and the contractor describing the terms and procedure for material excavation.

3.6 *Stationary manufacturing and processing plants* - Structures that are permanently placed and that are integral to the grading, crushing and stockpiling of excavated material.

Article IV: General provisions.

There shall be no excavation or removal from the premises in any district of topsoil, earth, sand, gravel, clay or quarry stone (except in connection with the necessary excavation and removal of not more than two hundred fifty (250) cubic yards of surplus material incidental to the bona fide construction of a building, landscaping or agricultural operation being executed on the premises) except in conformance with the regulations contained in this section. Excavation and removal of the above material in excess of two hundred fifty (250) cubic yards may occur in districts where it is a permitted use, subject to the planning board issuing a permit for excavation.

Article V: Application procedure.

5.1 *General procedure.* Whenever any earth excavation for commercial purposes is proposed, before any land clearing is begun or the removal of any sand, gravel, soil or construction aggregate and before any permit for earth excavation is granted, the landowner or person designated by the owner shall provide the planning board with an application for a permit. The applicant shall use an application form supplied by the planning board.

A copy of the permit must also be sent to the local conservation commission, if one is established, by the applicant.

Excluded from the permit requirement are the following activities:

- a. Excavation for construction or alteration of a building or structure, or the lawful construction or alteration of a parking lot or driveway.

- b. Excavation for agricultural or silvicultural activities, landscaping or minor topographical adjustments.
- c. Excavation from contiguous land in common ownership with a stationary manufacturing and processing plant in operation as of the effective date of RSA Chapter 155-E, which use earth obtained from such areas.
- d. Excavation for the lawful construction or maintenance of Class I, II, III, IV, or V highways by a unit of government, provided that a copy of the pit excavation agreement signed by the pit owner and the governmental unit shall be filed with the planning board prior to starting of the excavation. Such excavation shall not be exempt from the provisions of RSA 155-E:4 and 155-E:10.
- e. Existing excavations which were active as of the date of adoption of these regulations.

5.2 *Application for amendment.* Whenever any alterations in the excavation project are anticipated (such as size, location, rate of removal or changes in restoration plan) the landowner or person designated by the owner shall submit to the planning board an application for amendment of his excavation permit. The applicant for amendment is subject to the same approval procedure as the original excavation permit.

5.3 *Application requirement.* The application permit shall be signed and dated by the applicant. The completed submission shall contain the following information:

- a. The name and address of the owner of the land to be excavated, the name and address of the person who will actually do the excavation and the name and address of all direct abutters of the land on which the excavation is proposed.
- b. The city tax map, block and lot numbers of the proposed excavation site.
- c. An excavation plan showing the excavation site and the scheme for removal of excavated material.

- d. A restoration plan describing the process of site regrading and revegetation following completion of the excavation project.
- e. Related permit approvals or other documents which may be required pertinent to the excavation proposal.

5.4 *Fee schedule.* Before the planning board issues a permit for excavation, the land owner or person designated by the owner must post a bond and pay a permit fee and an excavation fee.

- a. *Permit fee* - An excavation permit application shall be accompanied by a permit fee which is on file in the city clerk's office to defray the cost of posting the hearing and notifying the abutters.
- b. *Excavation fee* - An excavation fee which is on file in the city clerk's office shall be paid for an annual site inspection of the excavation project. The total excavation fee shall be based upon the duration of the project permit. Such fee shall be paid prior to issuance of the permit.

5.5 *Bonding.* A performance bond shall be required prior to the issuance of an excavation permit. The amount of the performance bond shall be no less than a fair estimate of the costs to restore the total excavation site plus an appropriate amount to account for future inflation.

The bond shall not be released until after a final site inspection has been made in accordance with the restoration plan.

5.6 *Hearing.* Prior to the approval of an application for an excavation permit or an application for an amended excavation permit, a public hearing shall be held as required by the provisions of RSA 155-E:7.

A notice of said hearing shall be sent to all direct abutters at least ten (10) days before the hearing date. The hearing notice shall also be posted in at least two (2) public places and published in a newspaper of general circulation at least ten (10) days before the hearing date.

The public hearing shall be held within thirty (30) days of receipt of a completed application submission including all required related materials. The planning board shall approve or disapprove the application within ninety (90) days of receipt of a completed application, giving reasons for disapproval.

Article VI: General submission requirements.

As part of the application for an excavation permit, the owner or applicant shall submit the following:

6.1 *Excavation plan.* An excavation plan at a scale and contour interval which provides a thorough understanding of the project, indicating the specific location and extent of the proposed excavation project. The excavation plan, prepared by a registered land surveyor, shall contain the following information:

- a. The number of acres to be involved in the project, including existing topographic and site boundaries.
- b. The distance between excavation area and closest property line.
- c. Existing visual barriers to be retained between the excavation areas and public roadways or abutting property owners.
- d. Known limits of any aquifer areas, as identified by the United States Geological Survey. Also, indicate any surface water body or streams adjacent to the proposed excavation.
- e. The elevation of the highest annual average groundwater table within or next to the proposed excavation.
- f. Indicate access roads leading to and from the excavation site. Access roads shall intersect existing roads at locations that will not endanger the safety of highway users and local residents. Such locations shall be approved by the state commissioner of public works and highways or by the city engineer when a local road is involved.

6.2 *Restoration plan.* A restoration plan of the excavation site shall be prepared and submitted by all new excavation site owners except as noted in RSA 155-E:2.

Within twelve (12) months after the expiration date, as indicated on the excavation permit or the completion of the excavation, whichever occurs first, the excavation site shall be restored to blend into the landscape of surrounding natural features and in compliance with RSA 155-E:5.

The restoration plan shall be drawn at the same scale and shall use the same base survey information as that utilized in the preparation of the excavation plan. The restoration plan shall contain the following information:

- a. Restored topography and drainage, eliminating any standing water created during the excavation project or from standing water occurring in the future.
- b. The phasing of site restoration, indicating areas and dates that restoration will be completed.
- c. Cross section or sections showing existing, excavated and restored topography configuration.
- d. Indicate soil fertilization, seeding, and mulching specifications and plant material to be used in restoration, their size and quantities in accordance with recommendations from the U.S. Soil Conservation Service.

All existing excavation operators shall be notified by the planning board of their site restoration responsibility as required by RSA Chapter 481:3, New Hampshire Laws of 1979. Such restoration shall be performed in compliance with RSA 155-E:5.

Article VII: Site requirements.

7.1 *Topsoil.* Prior to excavation of material, all topsoil shall be stripped and stored on-site for site restoration upon the completion of the excavation project. This should be done in a phased manner to minimize possible erosion.

7.2 *Visual barriers.* A vegetative or topographical visual barrier or buffer shall be maintained between surrounding roads, commercial and residential land uses and the excavation site whenever possible.

7.3 *Erosion control.* All surface drainage affected by excavation shall be controlled by the owner, in accordance with any

erosion control regulations of the State of New Hampshire or the City of Claremont, to prevent erosion, debris, and other loose materials from filling any drainage course, street or private property, and to prevent the collection and stagnation of water. All provisions to control natural drainage water shall meet with the approval of the city engineer.

7.4 *Debris.* The area shall be cleared of debris.

7.5 *Topography.* The restored topography of the area shall have no sharp slopes, pits, or depressions and proper drainage shall be provided to eliminate stagnant water. The finished slopes shall not exceed a thirty (30) percent grade.

7.6 *Completed excavation.* The excavation work shall be considered to be completed when the site has not been worked for twelve (12) consecutive months.

Article VIII: Administration.

8.1 *Enforcement.* The planning board or its duly authorized agent is responsible for the enforcement of these regulations as provided by RSA 155-E:10. The excavation permit may be suspended or revoked of any person who has violated any provision of his permit, these regulations or of chapter 155-E or made a material misstatement in the permit application upon which his permit was granted. Such suspension or revocation shall be subject to a motion for a rehearing thereon and appeal in accordance with RSA 155-E:9.

8.2 *Appeals.* Any person, aggrieved by the official decision of the planning board, may appeal for a rehearing on such decision as provided by RSA 155-E:9.

8.3 *Other regulations.* Where there are regulations in conflict with other local ordinances and/or regulations, the more stringent shall apply.

8.4 *Adoption.* These regulations shall become effective after a public hearing, adoption, and certification by the planning board.

Adoption verification.

These regulations have been adopted by the Claremont Planning Board on November 10, 1986, after a duly noticed public hearing held on November 10, 1986.